

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201605419	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 04/05/2016 5:50 PM	Location of Incident: outside of 51-23 108th Street; at the 110th Precinct stationhouse	18 Mo. SOL 10/5/2017	Precinct: 110
Date/Time CV Reported Wed, 06/22/2016 1:43 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 06/22/2016 1:43 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Christophe Musa	09064	952040	110 PCT
3. SGT Minh Tran	00750	929274	110 PCT
4. POM Christophe Sanchez	23298	948129	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Anthony Jones	17923	944684	110 PCT
2. POM Michael Carrieri	31971	930412	110 PCT
3. POM Zul Chowdhury	01371	948780	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Minh Tran	Abuse: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)	A . Substantiated
B . SGT Minh Tran	Abuse: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)	B . Substantiated
C . SGT Minh Tran	Abuse: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)	C . Substantiated
D . POM Christophe Musa	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Musa interfered with § 87(2)(b)'s use of a recording device.	D . Unsubstantiated
E . POM Christophe Musa	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Musa frisked § 87(2)(b)	E . Substantiated
F . POM Christophe Sanchez	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez frisked § 87(2)(b)	F . Unsubstantiated
G . POM Christophe Sanchez	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez frisked § 87(2)(b)	G . Unsubstantiated
H . POM Christophe Sanchez	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez searched § 87(2)(b)	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . SGT Minh Tran	Abuse: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran searched the vehicle in which § 87(2)(b) was an occupant.	I . Unfounded
J . POM Christophe Musa	Abuse: Outside of 51-23 108th Street in Queens, Police Officer Christopher Musa searched the vehicle in which § 87(2)(b) was an occupant.	J . Substantiated
K . POM Christophe Sanchez	Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez used a chokehold against § 87(2)(b)	K . Unsubstantiated
L . POM Christophe Sanchez	Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez restricted the breathing of § 87(2)(b)	L . Unsubstantiated
M . POM Christophe Sanchez	Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez used physical force against § 87(2)(b)	M . Unsubstantiated
N . POM Christophe Sanchez	Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez restricted the breathing of § 87(2)(b)	N . Unsubstantiated
O . SGT Minh Tran	Discourtesy: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . SGT Minh Tran	Abuse: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran threatened to arrest § 87(2)(b)	P . Unsubstantiated
Q . An officer	Force: Outside of 51-23 108th Street in Queens, an officer used physical force against § 87(2)(b)	Q . Alleged Victim Uncooperative
R . POM Christophe Sanchez	Discourtesy: At the 110th Precinct stationhouse Police Officer Christopher Sanchez spoke discourteously to § 87(2)(b)	R . Unsubstantiated
S . POM Christophe Sanchez	Discourtesy: At the 110th Precinct stationhouse Police Officer Christopher Sanchez spoke discourteously to § 87(2)(b)	S . Unsubstantiated
T . POM Christophe Sanchez	Abuse: At the 110th Precinct stationhouse Police Officer Christopher Sanchez did not obtain medical treatment for § 87(2)(b)	T . Unsubstantiated
U . POM Christophe Sanchez	Abuse: At the 110th Precinct stationhouse Police Officer Christopher Sanchez did not obtain medical treatment for § 87(2)(b)	U . Unsubstantiated
V . An officer	Abuse: At the 110th Precinct stationhouse an officer did not obtain medical treatment for § 87(2)(b)	V . Officer(s) Unidentified
W . An officer	Abuse: At the 110th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	W . Alleged Victim Uncooperative

Case Summary

§ 87(2)(b) filed this complaint in-person at the CCRB on June 22, 2016, nearly three months after the incident date. On April 5, 2016, at approximately 5:50 PM, § 87(2)(b) parked his vehicle on the 52nd Avenue side of Corona Pizza, located at 51-23 108th Street, in Queens. Also inside his vehicle were his uncle, § 87(2)(b), his cousin, § 87(2)(b) and a friend, § 87(2)(b), § 87(2)(b) and § 87(2)(b) exited the vehicle and entered the pizzeria while § 87(2)(b) and § 87(2)(b) remained inside of the vehicle. § 87(2)(b) placed an order, exited the pizzeria, and returned to his vehicle.

As § 87(2)(b) and § 87(2)(b) sat in the vehicle waiting for § 87(2)(b) Sgt. Minh Tran, PO Christopher Musa, and PO Christopher Sanchez of the 110th Precinct Anti-Crime team arrived in an unmarked RMP, which they parked in front of § 87(2)(b)'s vehicle. The officers exited the RMP, approached, and ordered § 87(2)(b) and § 87(2)(b) out of the vehicle (**Allegations A, B, and C**). The three men complied. § 87(2)(b) removed his cell phone from his pocket and began to record the incident, but PO Musa allegedly took the phone from § 87(2)(b)'s hand and told him that he could not record (**Allegation D**). PO Musa then frisked § 87(2)(b) (**Allegation E**) while PO Sanchez allegedly frisked § 87(2)(b) and § 87(2)(b) (**Allegations F and G**). PO Sanchez then allegedly searched § 87(2)(b) (**Allegation H**). The officers guided § 87(2)(b) and § 87(2)(b) to the rear of § 87(2)(b)'s vehicle. Sgt. Tran and PO Musa then allegedly searched § 87(2)(b)'s vehicle (**Allegations I and J**). PO Musa recovered half of a Xanax pill from somewhere inside of the vehicle. § 87(2)(b) and § 87(2)(b) each denied ownership of the pill, and thus all three were placed under arrest.

PO Sanchez placed § 87(2)(b) in handcuffs and guided him toward the RMP. § 87(2)(b) asked how the three arrestees and the three officers would fit inside of the officers' RMP, and PO Sanchez, behind § 87(2)(b) allegedly pushed § 87(2)(b) forward with one hand while pulling the rear of § 87(2)(b)'s collar backward with his other hand, pulling the front of § 87(2)(b)'s collar tight against § 87(2)(b)'s neck and restricting his breathing (**Allegations K and L**). PO Sanchez then allegedly took § 87(2)(b) to the ground (**Allegation M**), causing § 87(2)(b) to strike his head on the pavement. PO Sanchez then placed his knee on § 87(2)(b)'s back, compressing § 87(2)(b)'s chest and further restricting his breathing (**Allegation N**). By this time § 87(2)(b) had exited the pizzeria and was standing on the sidewalk holding a phone with which she appeared to be recording the incident. Sgt. Tran allegedly said to § 87(2)(b) "Get back on the fucking sidewalk" (**Allegation O**) and told § 87(2)(b) that she could be arrested (**Allegation P**). Additionally, an officer allegedly pushed § 87(2)(b) against the corner of § 87(2)(b)'s vehicle while placing § 87(2)(b) under arrest, causing him pain (**Allegation Q**).

A second RMP, carrying PO Anthony Jones, PO Michael Carrieri, and PO Zul Chowdhury of the 110th Precinct Anti-Crime team then arrived on scene. PO Jones and PO Chowdhury lifted § 87(2)(b) to his left, placed him in their RMP, and transported § 87(2)(b) to the 110th Precinct stationhouse in their RMP. Sgt. Tran and PO Sanchez transported § 87(2)(b) and § 87(2)(b) to the 110th Precinct stationhouse in their RMP and PO Musa drove § 87(2)(b)'s vehicle.

At the 110th Precinct stationhouse § 87(2)(b) and § 87(2)(b) were lodged in a cell. § 87(2)(b) told § 87(2)(b) that an officer had pushed him against a vehicle (which § 87(2)(b)

did not witness), causing pain to § 87(2)(b)'s chest. Additionally, § 87(2)(b) felt dizzy. When PO Sanchez reentered the cell area, § 87(2)(b) told PO Sanchez that he felt dizzy, that § 87(2)(b)'s chest hurt, and that they both wanted medical attention. PO Sanchez allegedly said to § 87(2)(b) and § 87(2)(b) "Stop fucking bullshitting" (**Allegations R and S**) and then, directing his attention to § 87(2)(b) allegedly said, "Stop being a baby" (also **Allegation R**). PO Sanchez then departed from the cell area; he allegedly did not obtain medical treatment for § 87(2)(b) or § 87(2)(b) (**Allegations T and U**). § 87(2)(b) began to strike the cell door in order to gain someone's attention. An unidentified officer entered the cell area. § 87(2)(b) informed this officer that he felt dizzy and wanted medical attention. The officer allegedly told § 87(2)(b) to inform someone at Central Booking that he wanted medical attention (**Allegation V**). Additionally, when § 87(2)(b) told an officer that he needed medical attention, the officer allegedly refused to obtain medical treatment for § 87(2)(b) (**Allegation W**). Neither § 87(2)(b) nor § 87(2)(b) was ever transported from the 110th Precinct stationhouse to a hospital and neither ever received medical treatment while at the 110th Precinct stationhouse.

§ 87(2)(b) and § 87(2)(b) were then transported to Central Booking Queens, where they were arraigned and charged with § 87(2)(b)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was deemed unsuitable for mediation because § 87(2)(b) and § 87(2)(b) were arrested.
- On September 23, 2016, the Office of the Comptroller informed the undersigned that no notice of claim has been filed in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is one of three complaints filed by § 87(2)(b). The two others, CCRB Cases #201604752 and #201605136, were reported before the filing of this complaint. Both cases are pending review by the Board. In the former of these two cases § 87(2)(b) alleged that in May of 2016, PO Carrieri stopped, frisked, searched, and strip-searched § 87(2)(b) and that Sgt. Tran stopped him and used force against him. In the latter of these two cases, § 87(2)(b) alleged that in June of 2016, PO Jones spoke discourteously to him and that PO Jones and PO Carrieri threatened him with the use of force. § 87(2)(b) has not been involved in any other CCRB cases.
- Sgt. Tran, who has been a member of the NYPD for 15 years, has been a subject in five CCRB cases. In case #200410072 it was alleged that Sgt. Tran used the word “fuck” in dealing with a civilian. That allegation was unfounded. In case #200500649 it was alleged that Sgt. Tran repeatedly used the word “fuck” in giving commands to a group of civilians. That case was truncated. As noted above, in CCRB case #201604752 it was alleged that Sgt. Tran stopped and used force against § 87(2)(b). That case is pending review by the CCRB’s Board. No allegations made against Sgt. Tran have been substantiated.
- PO Sanchez, who has been a member of the NYPD for seven years, has been a subject in thirteen CCRB cases. In CCRB case #200911835 it was alleged that PO Sanchez used the word “fuck” in dealing with § 87(2)(b). That complaint was withdrawn. In case #201100881 it was alleged that PO Sanchez searched § 87(2)(b). That complaint was truncated. In case #201105993 it was alleged that PO Sanchez took § 87(2)(b) to the ground and punched § 87(2)(b). These allegations were exonerated. In case #201406019 it was alleged that PO Sanchez stopped and searched § 87(2)(b). That complaint was truncated. In case #201506798 it was alleged that PO Sanchez used the word “fuck.” That complaint was truncated. In case #201509922 it was again alleged that PO Sanchez used the word “fuck.” That allegation was unsubstantiated. In case #201606376 it was alleged that PO Sanchez threw § 87(2)(b) to the ground. That complaint was truncated. No allegations made against PO Sanchez have been substantiated.
- PO Musa, who has been a member of the NYPD for four years, has been a subject in four other CCRB cases. In case #201406019 it was alleged that PO Musa frisked § 87(2)(b). That complaint was truncated. In CCRB case #201507331 it was alleged that PO Musa interfered with § 87(2)(b)’s ability to record an incident. That complaint was truncated. § 87(2)(b) No allegations made against PO Musa have been substantiated.
- No attempts were made to obtain video of the incident from any nearby businesses, as the incident was reported nearly three months of the incident date.

Potential Issues

- § 87(2)(b) provided two brief phone statements (Board Review 01 and 02), both on June 28, 2016. However, he missed interview appointments scheduled for July 8, 2016

and July 15, 2016 and did not call to cancel or reschedule. Therefore, the investigation was unable to obtain a verified statement from him.

- § 87(2)(b) provided a phone statement (Board Review 03) but was reluctant to speak about the incident and was not forthcoming. Several times, he provided an answer and then immediately recanted. Ultimately, § 87(2)(b) stated only that the officers searched § 87(2)(b) discovered a pill, and arrested § 87(2)(b) and § 87(2)(b). According to § 87(2)(b) nothing else occurred.
- “§ 87(2)(b) an employee of Corona Pizza whom § 87(2)(b) stated may have witnessed the incident, denied any knowledge of the incident in question.
- § 87(2)(b) (Board Review 04) stated both that § 87(2)(b) was a victim of misconduct and that she recorded a video of the incident. On June 28, 2016 the undersigned reached § 87(2)(b) by telephone. She stated that she did not have video of the incident and that she did not have the time to discuss the incident. She also asked what she stood to gain from an investigation. When the undersigned contacted § 87(2)(b) later the same day, she stated that she did not wish to participate in the investigation because she felt that she did not stand to gain anything. She refused to schedule an interview appointment and stated she would subsequently be on vacation for approximately one month. On July 7, 2016 the undersigned again reached § 87(2)(b) and asked if she would reconsider her earlier decision not to participate in the investigation. § 87(2)(b) stated she was out of the country and did not wish to participate. Additionally, § 87(2)(b) confirmed that, in fact, she recorded a video of the incident. However, she refused to say when she would return from vacation or when she might be able to provide the video. On July 14, 2016 § 87(2)(b) confirmed that § 87(2)(b) was on an extended vacation. He believed she would return in late July. On August 1, 2016 the undersigned again contacted § 87(2)(b) who stated that she was still out of the country and did not know when she would return. She requested that the undersigned investigator cease in attempting to contact her. Therefore, the investigation was unable to obtain the video from § 87(2)(b).
- On June 28, 2016, § 87(2)(b), a private investigator hired by § 87(2)(b) informed the undersigned via telephone that he had obtained a partial version of the incident video recorded by § 87(2)(b). He stated he would attempt to email it and would bring it to the CCRB on a flash drive if necessary. However, during the same conversation § 87(2)(b) requested access to confidential information pertaining to the investigation, and when his request was denied he terminated the call. On July 1, 2016 the undersigned again reached § 87(2)(b). He asked that the undersigned contact him after July 4, 2016 in order to schedule a meeting during which he would provide the video. On July 5, 2016 the undersigned reached § 87(2)(b) but he stated he was in a meeting and would contact the undersigned afterward. On July 6, 2016 a voicemail message was left. On July 7, 2016 the undersigned received an email from § 87(2)(b) with the subject line “Video § 87(2)(b) Case” but there was no file attached. The same day, the undersigned left a voicemail message informing § 87(2)(b) that the email was received but that there was no attachment. The undersigned left a voicemail message for § 87(2)(b) on July 12, 2016. On July 15, 2016 the undersigned reached § 87(2)(b) who stated he would visit the CCRB on July 18, 2016 to provide the incident video. However, he did not appear at the CCRB on July 18, 2016 as scheduled. On July 18 and 21, 2016 voicemail messages were left for § 87(2)(b) in the latter of these messages the

undersigned offered to meet § 87(2)(b) in the field in order to obtain the video. However, as of the writing of this report § 87(2)(b) has not contacted the undersigned and has not provided the incident video.

- As noted above, § 87(2)(b) began to record a video of the incident before PO Musa allegedly took away his phone. According to § 87(2)(b) he did not save the video that was recorded anywhere but on his cell phone. Subsequently, on § 87(2)(b), when § 87(2)(b) was arrested in an unrelated incident [see CCRB case #§ 87(2)(b) § 87(2)(b) s phone was vouchered as arrest evidence. On July 12, 2016 the undersigned reached ADA Jennifer Goltche of the Queens County District Attorney's office, who is assigned to the case pertaining to § 87(2)(b) s May 26, 2016 arrest. ADA Goltche stated that § 87(2)(b) s cell phone will not be released until his criminal charges are disposed of. § 87(2)(b)] [§ 86(1)(2)(4)] [§ 87(2)(g)] Therefore, the investigation was unable to obtain the video reportedly saved to § 87(2)(b) s phone.

Findings and Recommendations

Pleading of Allegations:

- As discussed in greater detail below in the analysis of Allegations A, B, and C, Sgt. Tran (Board Review 06), PO Sanchez (Bard Review 07) and PO Musa (Board Review 08) each stated that they collectively detected the odor of marijuana as they passed § 87(2)(b) s vehicle, and that this odor alone precipitated the subsequent stops. § 87(2)(g)

Allegation A—Abuse of Authority: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)

Allegation B—Abuse of Authority: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)

Allegation C—Abuse of Authority: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran stopped § 87(2)(b)

§ 87(2)(b) stated that prior to the incident he was in the driver's seat of his vehicle. § 87(2)(b) was in the front passenger's seat, § 87(2)(b) sat in the rear driver's-side seat, and § 87(2)(b) was in the rear passenger's-side seat. § 87(2)(b) let § 87(2)(b) out of the vehicle outside of Corona Pizza and then parked next to the pizzeria, on 52nd Avenue. He parked legally and was not parked on a hydrant. He did not park in violation of any nearby signage. His vehicle did not have tinted windows. To § 87(2)(b) s knowledge he committed no VTL violation prior to parking. § 87(2)(b) then exited his vehicle, leaving § 87(2)(b) and § 87(2)(b) inside. § 87(2)(b) entered Corona Pizza, placed an order for food, and purchased a clear, glass bottle of Snapple. § 87(2)(b) then exited the pizzeria, leaving § 87(2)(b) inside to wait for their orders. § 87(2)(b) returned directly to his vehicle and did not interact with anyone on the street outside of the pizzeria. He began drinking the Snapple and remained inside the vehicle with § 87(2)(b) and § 87(2)(b) for between two and three minutes. An unmarked RMP then parked directly in front of § 87(2)(b) s vehicle. Sgt. Tran, PO Sanchez, and PO Musa exited the RMP and approached § 87(2)(b) s vehicle. PO Sanchez opened § 87(2)(b) s passenger's side door and ordered all of the

occupants out of the vehicle. § 87(2)(b) and § 87(2)(b) complied. Later, when § 87(2)(b) asked why he, § 87(2)(b) and § 87(2)(b) had been stopped, PO Sanchez told him that that the officers observed § 87(2)(b) drinking an alcoholic beverage inside of his vehicle.

§ 87(2)(b) stated further that he did not smoke any marijuana on April 5, 2016 and that to his knowledge neither § 87(2)(b) nor § 87(2)(b) smoked marijuana that day. Neither § 87(2)(b) nor § 87(2)(b) nor § 87(2)(b) had any marijuana on their persons. Further, no one smoked marijuana inside of § 87(2)(b)'s vehicle; there was no marijuana or marijuana smoke inside of § 87(2)(b)'s vehicle; and § 87(2)(b)'s vehicle did not smell of marijuana. No officer ever made any mention to § 87(2)(b) of marijuana or the odor of marijuana.

According to § 87(2)(b) § 87(2)(b) did not commit any traffic violations upon approach to the pizzeria and parked legally. However, as noted in *Potential Issues*, § 87(2)(b) did not provide a verified statement and did not provide any testimony in regards to whether or not he or any of the vehicle's other occupants smoked marijuana on the date in question.

Sgt. Tran stated as the RMP headed eastbound on 52nd Avenue, between 108th Street and 111th Street, the RMP passed by the south side of Corona Pizza, located at 51-23 108th Street. The RMP's windows were open. As they drove by this location, they passed immediately adjacent to a legally parked vehicle on the RMP's left. Sgt. Tran did not observe any VTL violation. As the RMP passed this vehicle, Sgt. Tran smelled the odor of marijuana. Sgt. Tran recognized this odor based on his training and experience; he had made numerous previous arrests involving the illegal smoking of marijuana. Both PO Musa and PO Sanchez informed Sgt. Tran stated that they also smelled the odor of marijuana. Sgt. Tran saw three individuals seated inside of the vehicle and did not see anyone else in the vicinity of the vehicle at that time. Because of the RMP's proximity to the vehicle in question when Sgt. Tran and his partners smelled the odor of marijuana, and because no one else was nearby, Sgt. Tran believed the odor of marijuana to be emanating from the vehicle in question. Sgt. Tran did not suspect that any of the vehicle's occupants was drinking an alcoholic beverage and he did not learn that PO Musa or PO Sanchez had any such suspicion. Because of the odor of marijuana, the officers resolved to stop the occupants of the vehicle and investigate. Further, although Sgt. Tran could not initially see the occupants of the vehicle, he recognized it as the vehicle of § 87(2)(b). Both § 87(2)(b) and his uncle, § 87(2)(b) were known members of § 87(2)(b). Sgt. Tran believed § 87(2)(b) to be dangerous because of his association with § 87(2)(b) and because of his involvement in criminal activities. The operator of the RMP reversed and parked the RMP behind the subject vehicle. The officers parked, exited the RMP, and approached. As they approached, the odor of marijuana grew stronger. Sgt. Tran did not see smoke inside of or emanating from the vehicle. He did not observe the vehicle's occupants to be smoking. An officer – Sgt. Tran did not recall specifically who – ordered the vehicle's occupants from the vehicle. The three occupants then exited.

PO Musa stated that while on patrol, the RMP passed immediately adjacent to a stationary, parallel-parked vehicle on the north side of 52nd Avenue, next to Corona Pizza. PO Musa did not observe the vehicle to be in violation of the VTL. As the RMP passed immediately adjacent to this vehicle, PO Musa detected the odor of marijuana. PO Musa recognized the odor of marijuana based on numerous previous arrests for illegal possession of marijuana. He did not recall if the

RMP's windows were open or closed. There were three individuals inside of the vehicle. Because of the RMP's proximity to the vehicle when PO Musa smelled marijuana, and because the vehicle was occupied, PO Musa suspected the odor was coming from that vehicle. PO Musa articulated to PO Sanchez and Sgt. Tran that he smelled marijuana. The officers exited the RMP and approached the vehicle on foot. As the officers approached, PO Musa continued to detect the odor of marijuana. PO Musa did not see anyone smoking inside of the vehicle and did not see smoke emanating from the vehicle. However, because of the odor, PO Musa suspected that the occupants of the vehicle might be in possession of marijuana. PO Musa did not recall suspecting that any of the occupants was drinking an alcoholic beverage. When the officers arrived next to the vehicle, he recognized two of the vehicle's occupants as § 87(2)(b) and § 87(2)(b) both known members of § 87(2)(b). The front driver's side window was closed, but PO Musa did not remember if the other windows were open or closed. PO Musa knocked on the front driver's side window and then asked the occupants if they had any marijuana in the vehicle or if they were smoking marijuana. One of the occupants said that they had smoked marijuana earlier, but PO Musa did not remember who said this. The occupant did not specify when they had smoked or where. One of the officers then asked the occupants to exit vehicle, but PO Musa did not recall who asked. The three occupants exited.

PO Sanchez stated that when the RMP passed immediately adjacent to § 87(2)(b)'s vehicle, parked on the south side of Corona Pizza, PO Sanchez smelled the odor of marijuana. PO Sanchez recognized the odor of marijuana based on his training and because of numerous previous arrests involving the illegal possession or burning of marijuana. PO Sanchez did not observe the vehicle to be in violation of any VTL. PO Sanchez did not remember if the RMP's windows were open or closed. He believed that the odor was coming from the vehicle in question because he smelled the odor at the moment the RMP passed it. There was no reason for the officers' approach other than the odor of marijuana. PO Sanchez did not remember if he observed any occupant to be drinking what appeared to be an alcoholic beverage. The officers exited the RMP and approached the vehicle. As PO Sanchez approached he continued to smell the odor of marijuana. He did not remember if he observed smoke inside of or emanating from the vehicle, or if he saw the occupants of the vehicle smoking. When the officers reached the vehicle PO Musa ordered individuals out of vehicle. When the occupants subsequently opened the vehicle's doors, the interior of the vehicle smelled of marijuana. According to PO Sanchez, he then saw that the vehicle was occupied by § 87(2)(b) and § 87(2)(b) whom he knew to be gang members, although he did not recall their specific gang affiliation.

PO Jones (Board Review 09), PO Carrieri (Board Review 10), and PO Chowdhury (Board Review 11), who responded to the scene of the arrests later in order to assist in transporting the arrestees, each stated that they did not learn about the observations which precipitated the stop.

According to *People v. De Bour* 40 N.Y.2d 201 (1976) (Board Review 12), an officer may stop an individual given reasonable suspicion of criminal activity. Further, according to *People v. Johnson* 901 N.Y.2d 909 (Board Review 13) the odor of marijuana alone is sufficient to provide officers who are trained and experienced in the use of marijuana not only with reasonable suspicion to stop the occupants of a vehicle, but also with probable cause to search a vehicle and/or its occupants.

was saved on § 87(2)(b)'s phone but he did not have access to the phone at the time of his CCRB interview because, as noted above in *Potential Issues*, it was vouchered as evidence in regards to a later arrest occurring on § 87(2)(b). § 87(2)(b) did not save the video anywhere other than on his phone.

Neither § 87(2)(b) nor § 87(2)(b) each of whom provided only brief phone statements, testified in regards to this allegation.

PO Musa did not recall if, after he exited the vehicle, § 87(2)(b) ever attempted to record the incident with a cell phone. He did not recall if he ever prevented § 87(2)(b) from using a recording device.

Neither Sgt. Tran nor PO Sanchez remembered if § 87(2)(b) attempted to record the encounter with a cell phone or other recording device, or if PO Musa ever interfered with § 87(2)(b)'s ability to use a recording device. Likewise, neither PO Jones, nor PO Chowdhury, nor PO Carrieri ever learned that § 87(2)(b) attempted to record the incident with a cell phone or that any officer interfered with § 87(2)(b)'s ability to use a recording device.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Abuse of Authority: Outside of 51-23 108th Street in Queens, Police Officer Christopher Musa frisked § 87(2)(b)

According to § 87(2)(b) PO Musa frisked him by patting down his waist and pockets. § 87(2)(b) had nothing in his pockets at the time: his wallet was in his vehicle and his phone was on top of the vehicle, where PO Musa placed it. § 87(2)(b) did not have any items on his person which created any bulges whatsoever.

PO Musa stated upon approach to the vehicle, he recognized two of the vehicle's occupants as § 87(2)(b) and § 87(2)(b) both known members of § 87(2)(b). PO Musa had previously summonsed § 87(2)(b) although he did not remember when this took place. He did not know if any of the other officers had had any previous interactions with § 87(2)(b) or § 87(2)(b). PO Musa was not familiar with third occupant, later identified as § 87(2)(b). Because § 87(2)(b) and § 87(2)(b) were gang members, PO Musa suspected they might have weapons on their persons. When the vehicle's occupants exited, according to PO Musa, he frisked at least one of them for weapons. He did not specifically recall whom he frisked or if he frisked more than one individual. All of the occupants were frisked at this time but PO Musa did not recall if he frisked all of them or if PO Sanchez or Sgt. Tran frisked any of the occupants. PO Musa did not recall observing any bulge on any of the occupants' persons prior to

the frisks. Other than § 87(2)(b) and § 87(2)(b)'s involvement with § 87(2)(b), PO Musa did not recall any other specific reason that he suspected they might have weapons on their persons.

As noted above, Sgt. Tran stated that he immediately recognized the vehicle as belonging to § 87(2)(b). Sgt. Tran knew both § 87(2)(b) and § 87(2)(b) to be members of § 87(2)(b). According to Sgt. Tran, members of the 110th Precinct Anti-Crime team had arrested § 87(2)(b) previously and Sgt. Tran had interacted with § 87(2)(b) numerous times. Sgt. Tran believed § 87(2)(b) to be dangerous because of his association with § 87(2)(b) and because of his involvement in criminal activities. Sgt. Tran believed that after § 87(2)(b) and § 87(2)(b) exited the vehicle, PO Musa frisked all three men's outermost garments "top-to-bottom" and that PO Musa did so for the officers' safety. Sgt. Tran did not recall if he observed any bulges on any individual's person prior to these frisks. He did not recall if any officer said that they observed any such bulges. Sgt. Tran did not recall any specific factors which made him fear for his safety other than § 87(2)(b) and § 87(2)(b)'s past criminal records.

PO Sanchez did not recall if PO Musa frisked any of the occupants at this time. He did not recall if he observed any bulge on § 87(2)(b) or § 87(2)(b) person. PO Jones, PO Carrieri, and PO Chowdhury each stated that they did not learn about any frisk or search performed by any officer.

§ 87(2)(g)

According to *People v. Johnson* 901 N.Y.2d 909 (Board Review 13) the odor of marijuana alone is sufficient to provide officers who are trained and experienced in the use of marijuana not only with reasonable suspicion to stop the occupants of a vehicle, but also with probable cause to search a vehicle and/or its occupants. § 87(2)(g)

According to *People v. De Bour* 40 N.Y.2d 201 (1976) (Board Review 12), an officer may frisk an individual given reasonable suspicion that he or she is in danger by virtue of that individual being armed. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **substantiated**.

Allegation F—Abuse of Authority: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez frisked § 87(2)(b)

Allegation G—Abuse of Authority: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez frisked § 87(2)(b)

Allegation H—Abuse of Authority: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez searched § 87(2)(b)

§ 87(2)(b) stated that while PO Musa dealt with him, PO Sanchez patted down § 87(2)(b) and § 87(2)(b). PO Sanchez then removed § 87(2)(b)'s phone and wallet from his pockets and placed them on the roof of § 87(2)(b)'s vehicle.

§ 87(2)(b) also stated that when he, § 87(2)(b) and § 87(2)(b) exited the vehicle, an officer reached into his pockets. However, § 87(2)(b) did not recall specifically which officer did so. As noted above, § 87(2)(b) did not reiterate these allegations.

PO Sanchez did not recall if he frisked any of the vehicle's occupants or reached into any of the occupants' pockets. As noted above, he did not recall if he observed any bulge on § 87(2)(b) or § 87(2)(b) person.

PO Musa did not recall if PO Sanchez frisked any individual or reached into any of the individuals' pockets. As noted above, Sgt. Tran believed that PO Musa frisked all three occupants at this time, but he was not certain that it was PO Musa who frisked them. Sgt. Tran did not recall if PO Sanchez frisked or searched any of the three arrestees. Lastly, as noted above, PO Jones, PO Carrieri, and PO Chowdhury stated that they did not learn about any frisk or search performed by any officer.

§ 87(2)(g)

It is therefore recommended that **Allegations F, G, and H** be closed as **unsubstantiated**.

Allegation I—Abuse of Authority: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran searched the vehicle in which § 87(2)(b) was an occupant.

Allegation J—Abuse of Authority: Outside of 51-23 108th Street in Queens, Police Officer Christopher Musa searched the vehicle in which § 87(2)(b) was an occupant.

According to § 87(2)(b) when PO Sanchez and PO Musa brought § 87(2)(b) and § 87(2)(b) to the rear of the vehicle, Sgt. Tran then reached into and searched the passenger's side

of § 87(2)(b)'s vehicle. He looked under the seats and opened the glove compartment, which was closed prior to the search. PO Musa then joined Sgt. Tran, reaching into and searching the driver's side of the vehicle. § 87(2)(b) watched as the officers searched his vehicle. The search lasted between two and three minutes, at the end of which PO Musa emerged from the vehicle with half of a white, bar-shaped pill in his hands. PO Musa said, "Look what we found," and then said that he found the pill under the front passenger-side seat.

§ 87(2)(b) stated that of the three officers on scene – a white male, a black male, and an Asian male – only the white male officer searched the vehicle.

PO Musa stated that due to the aforementioned odor of marijuana, he searched the interior of the vehicle for marijuana or any other narcotics. He did not recall Sgt. Tran giving him any instruction to do so and did not recall Sgt. Tran assisting him in searching the vehicle. PO Musa searched the entire area of both the front and rear seats. He did not recall if he opened any compartments inside of the vehicle. PO Musa recovered one loose Xanax pill from on the rear seat. § 87(2)(a) 160.50, § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Sgt. Tran stated that either PO Musa or PO Sanchez searched the glove compartment, the front seats, under the front seats, and the center console of § 87(2)(b)'s vehicle. Sgt. Tran did not search the vehicle and only observed this vehicle search. However, Sgt. Tran did not watch the vehicle search intently, as his attention was also on § 87(2)(b) and § 87(2)(b) who were standing with the other of Sgt. Tran's two officers. While Sgt. Tran's attention was directed away from the vehicle search, the officer performing the search recovered part of a Xanax pill from inside of the vehicle. Sgt. Tran was not watching at that moment and did not see from where the pill was recovered, specifically. Sgt. Tran learned later that it was under one of the two front seats.

PO Sanchez confirmed that PO Musa searched the interior of the vehicle, but he did not recall specifically where inside of the vehicle PO Musa searched. When PO Musa completed searching the vehicle he informed PO Sanchez and Sgt. Tran that he had recovered a Xanax pill from the vehicle's interior. PO Sanchez did not recall where PO Musa recovered the pill from, although he believed PO Musa told him where the pill was found. PO Sanchez did not recall if Sgt. Tran assisted PO Musa in searching the vehicle.

According to PO Jones, § 87(2)(b) told PO Jones at some point – PO Jones did not recall when – that the pill was inside of his vehicle and that he had forgotten that it was there. However, PO Jones did not learn if any officer searched the vehicle. PO Carrieri stated that he learned that the incident was precipitated by a vehicle stop, but did not learn that any officer searched the vehicle. PO Chowdhury stated that he did not learn if the arrestees were removed from a vehicle or if any vehicle was involved in the arrests at all.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **unfounded**.

It is undisputed, however, that PO Musa searched § 87(2)(b)'s vehicle.

As noted above, according to *People v. Johnson 901 N.Y.2d 909* (Board Review 13) the odor of marijuana alone is sufficient to provide officers who are trained and experienced in the use of marijuana with probable cause to search a vehicle.

§ 87(2)(g)

Therefore, it is recommended that **Allegation J** be closed as **substantiated**.

Allegation K—Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez used a chokehold against § 87(2)(b)

Allegation L—Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez restricted the breathing of § 87(2)(b)

§ 87(2)(b) stated that when he, § 87(2)(b) and § 87(2)(b) each denied ownership of the pill, PO Sanchez placed § 87(2)(b) and § 87(2)(b) in handcuffs and PO Musa placed them in the rear of the RMP. PO Sanchez then told § 87(2)(b) to turn around and § 87(2)(b) did so. PO Sanchez placed § 87(2)(b) in handcuffs and § 87(2)(b) did not resist. PO Sanchez began to guide § 87(2)(b) toward the RMP. As they approached, § 87(2)(b) asked PO Sanchez how he, § 87(2)(b) and all three officers would fit inside of the RMP. PO Sanchez, standing behind § 87(2)(b) placed one hand on § 87(2)(b)'s handcuffs, stiffening his arm to push § 87(2)(b) forward. PO Sanchez then took hold of the hood of § 87(2)(b)'s sweatshirt with his other hand, pulling it backward. This action pulled the collar of § 87(2)(b)'s sweatshirt backward, applying pressure to § 87(2)(b)'s throat and restricting § 87(2)(b)'s breathing. PO Sanchez held § 87(2)(b) in this manner and guided him toward the RMP. § 87(2)(b) said multiple times that he could not breathe, but did not struggle or physically resist PO Sanchez.

Neither § 87(2)(b) nor § 87(2)(b) provided any relevant testimony in regards.

PO Sanchez testified that he never pulled the rear of § 87(2)(b)'s collar back so that the front of § 87(2)(b)'s collar was pulled tight against § 87(2)(b)'s neck and that he never restricted § 87(2)(b)'s breathing by applying pressure to his neck or throat. According to PO Sanchez, § 87(2)(b) never complained of any difficulty breathing. Finally, PO Sanchez testified that he never used a chokehold against § 87(2)(b).

PO Musa and PO Chowdhury each stated that they did not observe PO Sanchez pull § 87(2)(b)'s collar from behind, pulling the collar tight against the front of § 87(2)(b)'s neck or throat. They also did not observe PO Sanchez use a chokehold against § 87(2)(b) or restrict his breathing whatsoever. They did not observe § 87(2)(b) complain that his breathing was restricted. PO Chowdhury, for his part, stated that he never observed PO Sanchez use force against § 87(2)(b) whatsoever.

Sgt. Tran, PO Jones, and PO Carrieri each stated that they did not recall PO Sanchez pulling on the rear of § 87(2)(b)'s collar in order to pull the front of the collar tight against § 87(2)(b)'s neck, restricting § 87(2)(b)'s breathing; they did not recall § 87(2)(b) ever making any complaint that any officer did so; and they did not recall PO Sanchez ever using a chokehold against § 87(2)(b).

§ 87(2)(b)'s Pre-Arrest Screening Form (Privileged Documents) makes no reference to § 87(2)(b)'s breathing having been restricted. Further, as addressed below in the analyses of Allegation M, § 87(2)(b) was later transported from Queens Central Booking to § 87(2)(b). § 87(2)(a), § 87(2)(g), § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegations K and L** be closed as **unsubstantiated**.

Allegation M—Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez used physical force against § 87(2)(b)

According to § 87(2)(b) after PO Sanchez restricted is breathing, PO Sanchez suddenly swept his legs out from under him and took him to the pavement. § 87(2)(b) landed on his chest and struck the front of his head on the pavement.

§ 87(2)(b) stated that an officer “slammed” § 87(2)(b) onto the ground after placing § 87(2)(b) in handcuffs. § 87(2)(b) made no such allegation.

As noted above in *Potential Issues*, § 87(2)(b) who may have been on the sidewalk nearby when PO Sanchez took § 87(2)(b) to the ground, refused to provide a statement to the investigation.

PO Sanchez stated that when he approached § 87(2)(b) in order to place him in handcuffs, § 87(2)(b) yelled in a disorderly manner. However, PO Sanchez did not recall what § 87(2)(b) yelled. PO Sanchez placed § 87(2)(b) in handcuffs, but § 87(2)(b) then began to pull away from PO Sanchez. PO Sanchez did not recall if he gave § 87(2)(b) any verbal commands at this time. PO Sanchez held § 87(2)(b)'s arms, behind § 87(2)(b)'s back, but § 87(2)(b) pulled his arms away from PO Sanchez forcefully and lunged away from PO Sanchez as if to flee. PO Sanchez feared that § 87(2)(b) would attempt to flee, so in order to prevent § 87(2)(b) from fleeing, he took § 87(2)(b) to the ground. PO Sanchez did not recall exactly what tactic he used in taking § 87(2)(b) to the ground. When PO Sanchez did so, he landed on top of § 87(2)(b) who was on the pavement. PO

Sanchez did not know how § 87(2)(b) fell or which part of § 87(2)(b)'s body made contact with the ground, as they both went to the ground together and he was unable to see what took place clearly. PO Sanchez did not know if § 87(2)(b) struck his head on the ground. PO Sanchez also did not recall if he intentionally went to the ground with § 87(2)(b) or if he fell accidentally.

According to PO Sanchez, § 87(2)(b) “may have” sustained an “extremely minor” abrasion on his forehead at some point after PO Sanchez took him to the ground, but PO Sanchez did not recall with certainty if § 87(2)(b) sustained such an injury. PO Sanchez believed that he observed this abrasion on § 87(2)(b)'s forehead while § 87(2)(b) was on the ground.

PO Musa stated that after § 87(2)(b) and § 87(2)(b) were placed in handcuffs he guided them toward the RMP. He then placed § 87(2)(b) inside of the RMP and then he began to guide § 87(2)(b) into the RMP. However, § 87(2)(b) refused to enter the RMP. PO Musa told § 87(2)(b) to enter but § 87(2)(b) again refused. Meanwhile, PO Musa heard § 87(2)(b) yelling behind him but he did not recall what § 87(2)(b) was yelling. PO Musa did not recall if he heard § 87(2)(b) protest being handcuffed or placed in an RMP. PO Musa turned toward PO Sanchez and § 87(2)(b) and saw that § 87(2)(b) was yelling to a female friend who had appeared on the sidewalk nearby. PO Musa did not recall where PO Sanchez was at this time. He did not recall if § 87(2)(b) was in handcuffs, if PO Sanchez was placing § 87(2)(b) in handcuffs, or if PO Sanchez was making any physical contact with § 87(2)(b) at this time. PO Musa then directed his attention back to § 87(2)(b). He again told § 87(2)(b) to enter the vehicle and § 87(2)(b) finally complied. While PO Musa directed his attention toward § 87(2)(b) he did not hear any sounds indicating to him that a physical struggle was taking place between § 87(2)(b) and PO Sanchez. PO Musa turned his head toward § 87(2)(b) again in order to see what was taking place behind him and found that § 87(2)(b) and PO Sanchez were both on the ground. PO Musa did not see PO Sanchez and § 87(2)(b) go to the ground. However, he later learned from PO Sanchez that § 87(2)(b) attempted to pull away from him and that in PO Sanchez's attempt to control § 87(2)(b) they both went to the ground. PO Musa did not observe any visible injury on § 87(2)(b)'s person.

According to Sgt. Tran, when PO Sanchez approached § 87(2)(b) and PO Musa approached § 87(2)(b) in order to place them in handcuffs, both § 87(2)(b) and § 87(2)(b) began to flail their arms and pull away from the officers. Sgt. Tran watched PO Musa attempt to take hold of § 87(2)(b)'s arms in order to place him in handcuffs; he did not direct his attention to what was taking place between PO Sanchez and § 87(2)(b). § 87(2)(b) shouted loudly for PO Musa to get off of him and continued to flail his arms, but PO Musa then controlled his arms and placed § 87(2)(b) in handcuffs. The scene was loud and chaotic at this moment and Sgt. Tran did not hear what took place between § 87(2)(b) and PO Sanchez. When Sgt. Tran redirected his attention to PO Sanchez and § 87(2)(b) PO Sanchez and § 87(2)(b) were both on the ground. Sgt. Tran did not see how they came to be on the ground. Sgt. Tran did not at any point observe any physical injury on § 87(2)(b)'s person.

PO Jones did not recall what was taking place on scene when he arrived. He did not recall if § 87(2)(b) was on the ground. PO Jones stated that he learned at some point that there was a physical struggle while the officers were effecting the arrests, but he did not learn any further detail about

the struggle. He did not learn what techniques the officers used to overcome the arrestees' resistance. He did not recall if he ever observed any injury of § 87(2)(b) s person.

PO Carrieri stated that when he arrived on scene, the situation was generally "tumultuous," but he did not recall exactly what was taking place. PO Carrieri did not remember if § 87(2)(b) was already in handcuffs or if he saw anyone place § 87(2)(b) in handcuffs. PO Carrieri did not remember if § 87(2)(b) was on the ground, standing up, or inside of an RMP. PO Carrieri did not recall if any of the arrestees resisted arrest or if any officers used force to overcome the physical resistance of any arrestees. He did not recall if he ever observed § 87(2)(b) to have sustained any injury.

As noted above, PO Chowdhury stated that he did not witness PO Sanchez use any manner of force against § 87(2)(b). He did not observe any injury on § 87(2)(b) s person.

Also as noted above in *Potential Issues*, the investigation was unable to obtain the video reportedly recorded by § 87(2)(b) which may have captured the moment when PO Sanchez took § 87(2)(b) to the ground.

§ 87(2)(b) s Pre-Arrest Screening Form (Privileged Documents) provides no information relevant to this allegation. However, a Medical Treatment of Prisoner report prepared for § 87(2)(b) at Queens Central Booking on the evening of April 5, 2016 (Board Review 26) indicates that upon arrival at Booking, § 87(2)(b) requested medical attention and complained of "head pain as result of arrest." § 87(2)(a) PHL § 18(6)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

According to *NYPD Patrol Guide Procedure 203-11*, an officer may use the minimum necessary force to effect a lawful police action (Board Review 27).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation M** be closed as **unsubstantiated**.

Allegation N—Force: Outside of 51-23 108th Street in Queens, Police Officer Christopher Sanchez restricted the breathing of § 87(2)(b)

§ 87(2)(b) stated that once he was on the ground, PO Sanchez placed his knee on § 87(2)(b)'s back, pushing § 87(2)(b)'s chest onto the pavement and making it difficult for § 87(2)(b) to breath. PO Sanchez held § 87(2)(b) on the ground in this manner until a second RMP, carrying PO Jones, PO Carrieri, and PO Chowdhury arrived on scene.

§ 87(2)(b) stated that after an officer took § 87(2)(b) to the ground, that officer placed his knee on § 87(2)(b)'s neck. § 87(2)(b) did not provide any testimony in regards.

PO Sanchez stated that after he took § 87(2)(b) to the ground he held § 87(2)(b) in place with his bodyweight. PO Sanchez lay prone on top of § 87(2)(b)'s body for several seconds. § 87(2)(b) lay with his chest to the pavement. PO Sanchez did not place his knee on § 87(2)(b)'s back. § 87(2)(b) did not appear to have any difficulty breathing and did not complain of any such difficulty. When PO Sanchez lay on top of § 87(2)(b) lay still and did not resist any further. When PO Sanchez felt confident that § 87(2)(b) was not going to attempt to flee, he removed himself from on top of § 87(2)(b) and lifted § 87(2)(b) to his feet.

PO Musa stated that when he turned and saw PO Sanchez and § 87(2)(b) on the ground, he did not recall how § 87(2)(b) lay on the ground, whether on his side, his back, or his chest. § 87(2)(b) was yelling but PO Musa did not remember what he said. PO Musa did not remember what § 87(2)(b) was doing with his body. PO Sanchez was attempting to gain control of § 87(2)(b) but he did not recall where PO Sanchez's body was in relation to § 87(2)(b)'s body. It appeared to PO Musa that § 87(2)(b) was attempting to resist PO Sanchez's efforts to control him, but PO Musa could not specifically recall how § 87(2)(b) was resisting or what specific tactics PO Sanchez used. PO Musa did not recall how the struggle between § 87(2)(b) and PO Sanchez ended. He did not recall how they came to get up off of the ground. Eventually, however, both § 87(2)(b) and PO Sanchez stood upright on the sidewalk, and § 87(2)(b) was in handcuffs. PO Musa did not observe PO Sanchez place his knee on § 87(2)(b)'s back. As noted above, PO Musa did not observe PO Sanchez restrict § 87(2)(b)'s breathing whatsoever.

Sgt. Tran stated that when he redirected his attention to PO Sanchez and § 87(2)(b) PO Sanchez and § 87(2)(b) were both on the ground. § 87(2)(b) was chest-down against the ground and PO Sanchez was lying flat on top of him, along the length of his body, using his own body weight to hold § 87(2)(b) down. § 87(2)(b) who according to Sgt. Tran was not yet in handcuffs, continued to struggle and attempting to pull his arms away from PO Sanchez, who was attempting to take hold of them. Sgt. Tran ran to PO Sanchez and § 87(2)(b) and helped PO Sanchez to control § 87(2)(b).

§ 87(2)(b)'s arms. While § 87(2)(b) was on the ground, PO Sanchez placed him in handcuffs. Sgt. Tran did not observe PO Sanchez place a knee on § 87(2)(b)'s back. Sgt. Tran did not recall § 87(2)(b) complaining that any weight on his back caused him to experience difficulty breathing.

PO Jones did not remember if, when he arrived on scene, § 87(2)(b) was on the ground. PO Jones did not recall if he ever witnessed PO Sanchez place his knee on § 87(2)(b)'s back. He did not recall if PO Sanchez ever restricted § 87(2)(b)'s breathing in any manner. As noted above, PO Carrieri did not remember if when he arrived on scene § 87(2)(b) was on ground, standing up, or inside of an RMP. PO Carrieri did not recall if any of the arrestees resisted arrest or witnessing any officer using any manner of force to overcome the resistance of any arrestee. PO Carrieri did not witness PO Sanchez place his knee on § 87(2)(b)'s back at any point. PO Chowdhury, likewise, stated that he did not witness PO Sanchez restrain § 87(2)(b) or hold § 87(2)(b) to the ground with his body weight and did not witness PO Sanchez place his knee on § 87(2)(b)'s back.

§ 87(2)(a) PHL § 18(6)

As noted below, in the analysis of Allegations O and P, § 87(2)(b) believed that § 87(2)(b) began to record a video of the incident while PO Sanchez pinned him to the ground. However, as noted in *Potential Issues*, the investigation was unable to obtain the video reportedly recorded by § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that ***Allegation N*** be closed as **unsubstantiated**.

Allegation O—Discourtesy: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran spoke discourteously to § 87(2)(b)

Allegation P—Abuse of Authority: Outside of 51-23 108th Street in Queens, Sergeant Minh Tran threatened to arrest § 87(2)(b)

§ 87(2)(b) stated that while he was on the ground, he observed § 87(2)(b) standing in the street near the vehicles, pointing a cell phone at PO Sanchez. He did not see her exit the pizzeria. Sgt. Tran, standing near the RMP, said to § 87(2)(b) “Get back on the fucking sidewalk,” and told § 87(2)(b) that she could be arrested. § 87(2)(b) said, “I’m recording my friend.” While this was taking place, PO Musa, § 87(2)(b) and § 87(2)(b) were inside of the RMP.

§ 87(2)(b) stated that he did not witness any officer speak directly to § 87(2)(b). § 87(2)(b) did not provide any relevant testimony.

Sgt. Tran confirmed that § 87(2)(b) an associate of § 87(2)(b) and § 87(2)(b) who according to Sgt. Tran was also a known gang member, stood nearby and observed the encounter. § 87(2)(b) held a cell phone in her hand and appeared to be recording a video. She approached to within an arm’s length of Sgt. Tran, causing Sgt. Tran to fear for his safety, distracting him,

and interfering with his ability to supervise the scene. Sgt. Tran ordered § 87(2)(b) back onto the sidewalk, but she stood near Sgt. Tran and did not retreat. Sgt. Tran did not recall if he said, “Get back on the fucking sidewalk,” or if he used any profanity toward her whatsoever. He informed § 87(2)(b) that she had the right to record a video of the incident, but that if she did not move away from him, she could be arrested for Obstruction of Governmental Administration. § 87(2)(b) then complied and stepped away from him.

PO Sanchez stated that while PO Musa searched the vehicle, a female associate of § 87(2)(b) and § 87(2)(b) approached. PO Sanchez did not recall her name. She yelled at the officers and cursed at them, but PO Sanchez did not recall specifically what she said. A crowd gathered on the corner of 108th Street and 52nd Avenue as a result of the yelling. PO Sanchez did not recall how many individuals were in the crowd. PO Sanchez did not remember if Sgt. Tran spoke directly to this female at any point. PO Sanchez believed that the female should have been arrested for Disorderly Conduct, as her yelling caused a crowd to gather. Additionally, the female approached the officers, but PO Sanchez did not recall how closely she approached. Nonetheless, her approach caused PO Sanchez to fear for his safety. An officer told the female to step back but she refused to do so. PO Sanchez did not recall who told her to step back. Because the female refused to retreat, PO Sanchez believed that she could also have been arrested for Obstruction of Governmental Administration, as she interfered with the officers’ abilities to carry out their duties without interruption and distraction. PO Sanchez did not know if Sgt. Tran or any other officer informed this female that she could be arrested if she did not step back. PO Sanchez did not recall if Sgt. Tran said to this female, “Get back on the fucking sidewalk.” He did not know if any officer used any profanity toward this female whatsoever.

According to PO Musa, at some point he observed § 87(2)(b) shouting to a female friend who was standing on the sidewalk nearby. PO Musa did not see when this female arrived. The female was holding up a cell phone as if recording the incident. She appeared to PO Musa to be intoxicated, as she was staggering and appeared to be off-balance. She also spoke, but PO Musa did not recall what she said or to whom she spoke. She slurred her words as she spoke. PO Musa did not recall any interaction between Sgt. Tran and this female bystander. PO Musa did not watch her for the duration of the incident and he did not know how closely she approached Sgt. Tran. Her presence did not make PO Musa fear for his safety. PO Musa never observed the woman commit any arrestable offense. PO Musa did not hear Sgt. Tran say, to the woman, “Get back on the fucking sidewalk.” He did not hear any officer using any profanity toward her. He did not remember if Sgt. Tran or any other officer ever told that woman that she could be arrested.

On scene PO Jones observed § 87(2)(b) a woman who associated with members of § 87(2)(b). § 87(2)(b) was standing on the sidewalk and may have been holding up a cell phone as if recording, but PO Jones was not certain of this. PO Jones did not observe any verbal exchange between § 87(2)(b) and any officer. He did not observe any officer use profanity toward her or inform her that she could be arrested for any reason. He did not know if she committed any arrestable offense. PO Jones did not discuss her behavior with any officer.

PO Carrieri did not specifically recall the presence of any bystanders. PO Carrieri was familiar with the name § 87(2)(b) but was not certain if he remembered this individual specifically. He did not remember this female being present. PO Carrieri did not recall any female

on scene recording a video of the incident. PO Carrieri did not recall Sgt. Tran saying to any bystander, “Get back on the fucking sidewalk.” PO Carrieri did not recall Sgt. Tran informing any bystander that they could be arrested for any reason.

PO Chowdhury was not familiar with § 87(2)(b) named § 87(2)(b). He did not observe a female bystander who appeared to film the officers. He did not see any bystander approach any officer. He did not recall Sgt. Tran informing any individual that he or she could be arrested or saying to any individual, “Get back on the fucking sidewalk.”

As mentioned above in *Potential Issues*, the investigation was unable to obtain the video reportedly recorded by § 87(2)(b) or any testimony from her.

§ 87(2)(g)

therefore it is recommended that **Allegation O** be closed as **unsubstantiated**.

According to *New York State Penal Law 195.05* (Board Review 28), an individual is guilty of Obstructing Governmental Administration when he or she intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference, or by means of any independently unlawful act.

§ 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **unsubstantiated**.

Allegation Q—Force: Outside of 51-23 108th Street in Queens, an officer used physical force against § 87(2)(b)

§ 87(2)(b) alleged in his first phone statement that an officer forcefully pushed him against § 87(2)(b)'s vehicle, causing him to strike his chest against the corner of the trunk. § 87(2)(b) did not make any such allegation on § 87(2)(b)'s behalf. § 87(2)(g)

it is recommended that **Allegation Q** be closed as **victim uncooperative**.

Allegation R—Discourtesy: At the 110th Precinct stationhouse Police Officer Christopher Sanchez spoke discourteously to § 87(2)(b)

Allegation S—Discourtesy: At the 110th Precinct stationhouse Police Officer Christopher Sanchez spoke discourteously to § 87(2)(b)

Allegation T—Abuse of Authority: At the 110th Precinct stationhouse Police Officer Christopher Sanchez did not obtain medical treatment for § 87(2)(b)

Allegation U—Abuse of Authority: At the 110th Precinct stationhouse Police Officer Christopher Sanchez did not obtain medical treatment for § 87(2)(b)

According to § 87(2)(b) at the stationhouse PO Sanchez lodged § 87(2)(b) and § 87(2)(b) together in one cell and then departed from the cell area. § 87(2)(b) told § 87(2)(b) and § 87(2)(b) that he was dizzy, and § 87(2)(b) told § 87(2)(b) that one of the officers had pushed him chest-first against § 87(2)(b)'s vehicle, causing pain in his chest. § 87(2)(b) had not seen this take place. Shortly afterward, PO Sanchez reentered the cell area. § 87(2)(b) told PO Sanchez he felt “woozy” because he had struck his head, that § 87(2)(b)'s chest hurt, and that they both wanted to go to hospital. PO Sanchez said to § 87(2)(b) and § 87(2)(b) “Stop fucking bullshitting,” and to § 87(2)(b) “Stop being a baby.” Other than § 87(2)(b) and § 87(2)(b) no other civilians, prisoners, or officers were present when this interaction took place. PO Sanchez then departed. Later that evening at approximately 11:00 PM, § 87(2)(b) and § 87(2)(b) were transported to Queens Central Booking. There, § 87(2)(b) said that he felt dizzy and wanted to go to the hospital. He was transported to § 87(2)(b) for treatment and then returned to Queens Central Booking.

As addressed above in the analysis of Allegation M, according to PO Sanchez, § 87(2)(b) “may have” sustained an “extremely minor” abrasion on his forehead at some point after PO Sanchez took him to the ground, but PO Sanchez did not recall with certainty if § 87(2)(b) sustained such an injury. PO Sanchez believed that he observed this scratch on § 87(2)(b)'s forehead while § 87(2)(b) was on the ground. PO Sanchez confirmed that he remained at the stationhouse in order to assist PO Musa with arrest processing. However, PO Sanchez did not specifically recall ever being in the cell area with any of the prisoners. PO Sanchez did not recall § 87(2)(b) ever complaining that he felt dizzy or complaining of pain to his head. § 87(2)(b) never complained about the above-mentioned abrasion on his forehead. PO Sanchez did not recall § 87(2)(b) ever stating for any reason that he wanted medical attention. PO Sanchez did not recall § 87(2)(b) ever complaining of pain to his chest or requesting medical attention. PO Sanchez never said to § 87(2)(b) or § 87(2)(b) “Stop fucking bullshitting,” or, “Stop being a baby.” PO Sanchez did not refuse to obtain medical attention for either § 87(2)(b) or § 87(2)(b).

PO Musa stated that after § 87(2)(b) and § 87(2)(b) arrived at the 110th Precinct stationhouse, he remained there to process the arrests with the assistance of PO Sanchez. § 87(2)(b) and § 87(2)(b) were lodged together in one cell. PO Musa did not recall § 87(2)(b) complaining that he was dizzy or § 87(2)(b) complaining of pain to his chest. He did not observe any injury on § 87(2)(b)'s person. PO Musa did not observe § 87(2)(b) or § 87(2)(b) exhibit any behavior which led him to be concerned for either individual's medical

condition. PO Musa did not recall § 87(2)(b) or § 87(2)(b) ever requesting medical attention. PO Musa did not recall PO Sanchez saying to § 87(2)(b) or § 87(2)(b) “Stop fucking bullshitting,” and he did not recall PO Sanchez saying to § 87(2)(b) “Stop being a baby.” To PO Musa’s knowledge PO Sanchez did not refuse to obtain medical attention for § 87(2)(b) or § 87(2)(b).

Sgt. Tran stated that he and PO Sanchez remained at the stationhouse assisting PO Musa, the arresting officer, in processing the arrests. Sgt. Tran did not recall ever interacting with any of the arrestees in the cell area. Sgt. Tran did not hear § 87(2)(b) or § 87(2)(b) while in the cell area, complain of pain. He did not observe any injury on § 87(2)(b)’s person. He did not witness § 87(2)(b) or § 87(2)(b) request medical attention. Sgt. Tran did not recall PO Sanchez saying to § 87(2)(b) or § 87(2)(b) “Stop fucking bullshitting.” He did not recall PO Sanchez saying to § 87(2)(b) “Stop being a baby.” Sgt. Tran did not recall visiting the cell area at any point. He did not learn that any officer made these statements. To Sgt. Tran’s knowledge PO Sanchez never refused to obtain medical treatment for § 87(2)(b) or § 87(2)(b).

PO Jones, PO Carrieri, and PO Chowdhury each stated that after they transported one of the prisoners to the 110th Precinct stationhouse they immediately resumed patrol. They did not remain at the stationhouse or assist in arrest processing. Neither PO Jones, nor PO Carrier, nor PO Chowdhury observed either § 87(2)(b) or § 87(2)(b) to be injured or request medical attention. PO Jones did not remember if he saw PO Sanchez or PO Musa at the stationhouse at all. They did not witness PO Sanchez say to § 87(2)(b) or § 87(2)(b) “Stop fucking bullshitting,” or, “Stop being a baby.” Further, they did not witness PO Sanchez refuse to obtain medical treatment for § 87(2)(b) or § 87(2)(b).

As noted above, the 110th Precinct Command Log noted (Board Review 24) that § 87(2)(b) and § 87(2)(b)’s physical conditions were both “A/N” – apparently normal. Also as noted above, a Medical Treatment of Prisoner report prepared for § 87(2)(b) at Queens Central Booking on the evening of April 5, 2016 (Board Review 26) indicates that upon arrival at Booking § 87(2)(b) requested medical attention and complained of “head pain as result of arrest.” A Medical Treatment of Prisoner report, prepared for § 87(2)(b) at Queens Central Booking (Board Review 29) indicates that § 87(2)(b) requested medical attention and complained of “body pain from previous injury.”

§ 87(2)(a) PHL § 18(6)

As § 87(2)(b) missed two interview appointments, the investigation did not obtain signed HIPAA forms or, consequently, § 87(2)(b)’s medical records. However, § 87(2)(b) s

Given § 87(2)(b)'s description of the subject officer in question, combined with information obtained from copies of the 110th Precinct's roll call (Board Review 31) and Command Log (Board Review 24), the investigation narrowed the list of possible subject officers, who fit the physical description and were in the stationhouse at the time of the incident, to the following: Lt. William Thaens of the 110th Precinct, Sgt. Robert McCabe of the 110th Precinct, and Sgt. Francis Margraf of the 110th Precinct. On August 22, 2016, § 87(2)(b) visited the CCRB and viewed photos of the officers (Board Review 32). However, he did not recognize any of them as the subject officer in question.

§ 87(2)(g)

It is therefore recommended that **Allegation V** be closed as **Officer(s) Unidentified**.

Allegation W—Abuse of Authority: At the 110th Precinct stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated after he, § 87(2)(b) and § 87(2)(b) were lodged in a cell at the stationhouse, he told an officer who had not been present at the scene of the arrests that he wanted to go to a hospital. This officer responded that § 87(2)(b) was not going to go to a hospital and was instead going to Central Booking. § 87(2)(b) repeated that he wanted to go to a hospital and the officer stated that he would discuss § 87(2)(b)'s request with the officers who arrested § 87(2)(b). § 87(2)(b) did not observe this officer ever discuss his request for medical attention with any other officer. However, § 87(2)(b) did not make any such allegation on § 87(2)(b)'s behalf. § 87(2)(g)

it is recommended that **Allegation W** be closed as **victim uncooperative**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date